

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC036937: ARNOLDO TORRES vs GENERAL MOTORS, LLC

06/22/2026 in Department 44

Motion For Leave to Amend Complaint

Effective **January 5, 2026**, Judge Charmaine H. Buehner and all cases previously assigned to Department J4 at the Juvenile Justice Center in Oxnard transferred to Department 44, located at the Hall of Justice, 800 South Victoria Avenue, Ventura, California 93009.

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Leave to File First Amended Complaint

Tentative Ruling:

Plaintiff’s unopposed Motion for Leave to File First Amended Complaint is GRANTED under Code of Civil Procedure, section 473, subdivision (a)(1).

The Court previously determined that Defendant’s motion for summary judgment was effectively a motion for judgment on the pleadings. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 382; *Stolz v. Wong Communications Limited Partnership* (1994) 25 Cal.App.4th 1811, 1817.) In granting Defendant’s motion, the Court indicated it would entertain Plaintiff’s motion for leave to amend and set a hearing for June 22, 2026. (*Stolz, supra*, 25 Cal.App.4th at p. 1817 [“Where a motion for summary judgment is in effect a motion for judgment on the pleadings, the court may grant a plaintiff leave to amend the complaint.”].) Plaintiff’s proposed FAC asserts a state-law claim for violation of the Commercial Code based

on section 2313. If properly alleged, this would be “enough to sustain a cause of action for breach of express warranty under the Magnuson-Moss Warranty Act.” (*Hastings v. Ford Motor Company* (S.D. Cal. 2020) 495 F.Supp.3d 919, 925 [case involving section 2313]; see also *Orichian v. BMW of North America, LLC* (2014) 226 Cal.App.4th 1322, 1332 [“Magnuson-Moss supplements California law of warranty and establishes a cause of action under the federal act for breach of written warranty. Plaintiff’s count under Magnuson-Moss for breach of written warranty was based on the California Uniform Commercial Code, which provides a remedy for breach of express warranty. Contrary to defendant’s argument, an express warranty as defined in Commercial Code section 2313, subdivision (1)(a) includes a written commitment to repair goods to conform to an affirmation or promise.”].)

In connection with its ruling on Defendant’s summary judgment motion, the Court also continued trial from late September to January 11, 2027. This continuance diminishes concerns about prejudice to Defendant, and Plaintiff’s motion is unopposed. Accordingly, in light of the liberal standard for granting leave to amend, and on a finding of good cause therefore, the Court GRANTS the motion.

Plaintiff is ordered to file the proposed FAC within 10 days and to give notice of the Court’s ruling.